OPEN LETTER · STEVE PROTHERO · OWNER

# Greenway Terraces cameras: $24,000 approved, no review for owners

Sent 15 October 2026 · To The Executive Committee, Greenway Terraces (UP12457) · Response requested by 5 November 2026

**Steve Prothero**
**Owner, Unit 151, Greenway Terraces (Units Plan 12457)**
**15 October 2026**

**The Executive Committee**
**Greenway Terraces, Units Plan 12457**
**c/- Grady Strata and Facilities**

**Video cameras: my questions, the Committee's responses, recommendations, reporting to owners, and the facts needed before any vote to extend coverage**

**Dear Committee members,**

**1. Purpose**
**I am writing, as an owner, about the video camera system on common property. I want to set out the questions I have asked and the responses I have received, put the available guidance on common-area CCTV in front of the Committee, make some recommendations, and say what I think owners should be told and what should be known before any vote to extend coverage.**

**I ask that this letter be tabled at the next Committee meeting, referred to the Security sub-committee for advice, and recorded in the minutes and the correspondence register.**

**2. What I have asked and how the Committee has responded**
**1. 13 and 16 March 2026 – use of the pool footage. I asked whether the 4 March footage had been viewed. Mr Molloy replied on 16 March that he and one other person had viewed about an hour of footage, found it largely inconclusive because of the camera's field of view, noted that sound cannot lawfully be recorded, saw no basis to approach the parent, and proposed no further action. This is the only substantive response I have had on how the cameras are actually used. It did not say who authorised the viewing, whether it was logged, or what the CCTV Policy required.**
**2. 22 March 2026 – post-implementation review. I asked for the objectives and benefits set before installation, whether the system has resolved any incidents, its limits (placement, image quality, access, retention, response protocols), proposed improvements, and that owners be told the response with reasons or a timetable. I have received no written reply.**
**3. 7 May 2026 – follow-up. I listed the information still missing: actual cost against the $24,000 approved by 2023 Motion 11, ongoing costs, incidents captured, assistance to**

police, any reduction in theft, vandalism or trespass, privacy compliance, who has accessed footage, whether the 31-day retention is applied, value for money, and the evidence for expansion. This too is unanswered.
4. 30 August 2026 – security review submission. I raised the same issues in my submission, including that the seven existing cameras are record-only and unmonitored, the privacy cost of the number plate camera, whole-of-life cost, and the need for a footage-to-action pathway before any expansion. I have not received a response to those points.
Meanwhile, the minutes record that the Committee approved three additional cameras, that the initial phase is complete, and that the next phase is "the most expensive and technically difficult to achieve".

The Improvement Plan describes extending coverage as "only needed if the level of crime, user behaviour or vandalism increases", yet no incident data has been shared with owners to show whether that condition has been met.

The questions I have asked are basic ones that any committee spending owners' money would be expected to answer.

3. What the guidance and evidence say
I have looked for ACT-specific guidance on CCTV in strata common areas. I could not find any published by ACT Policing or by the Strata Community Association in the ACT. What follows therefore draws on research evidence, ACT Government practice, and strata guidance from other jurisdictions, and I have labelled it accordingly.

• Research evidence. The most cited systematic review and meta-analysis (Piza, Welsh, Farrington and Thomas, 2019, Criminology & Public Policy 18(1)) found a modest but significant reduction in crime where CCTV is used. The effects were largest and most consistent in car parks, were stronger where cameras were actively monitored than where footage was only recorded, and were better when CCTV was combined with other measures and aimed at vehicle and property crime. It is not a stand-alone solution.
• Australian Institute of Criminology. AIC publications on CCTV (including Trends & Issues No. 430) reach a similar view:
limited value,
best for property and vehicle crime,
no demonstrated effect on violent crime,
best used as part of a package, and
requiring clear protocols for monitoring and response.
• ACT Government practice. The ACT Government's own CCTV network keeps footage for generally no more than 30 days, makes disclosure subject to the Freedom of Information Act 2016 and the Information Privacy Act 2014, and its CCTV Policy requires a register of systems and clear arrangements for sharing footage with ACT Policing. These are not binding on an owners corporation, but they are a reasonable benchmark for what a well-

run system looks like.
• ACT Policing. ACT Policing encourages the community to report non-emergency incidents on 131 444, to use Crime Stoppers (1800 333 000), and to share footage through its Axon Community Request process, and supports Neighbourhood Watch ACT. Footage is only useful to police if it is retained, can be found by date and time, and can be provided promptly in a usable format.
• Strata guidance (mainly NSW and Victoria). Strata bodies and law firms consistently advise that an owners corporation
adopt a written CCTV policy covering purpose,
who may view and download footage,
retention period (typically 14 to 30 days),
signage,
the procedure for footage requests,
review, and owner input.
An ACT-specific strata commentary says the same: develop an ongoing CCTV policy, including for requests for footage, with owner input.
The practical lesson is that cameras help most when they are aimed at a defined problem (vehicle and carpark crime), are tied to a response, and are evaluated. That is why the questions in section 2 matter.

4. Legal framework, as I understand it
I am not a lawyer and the Committee should take its own advice, but these provisions seem to me relevant:

• Unit Titles (Management) Act 2011, s 16(2): the owners corporation must comply with all applicable laws in force in the Territory.
• Section 19(2): reasonable use and enjoyment of common property by all owners and occupiers, which includes residents' reasonable expectation of privacy.
• Section 35(3): the Executive Committee acts as the corporation directs by resolution at a general meeting.
• Sections 75 and 77: payments from the general fund must be budgeted or authorised by ordinary resolution. Sections 81 to 88: new capital items paid from the sinking fund must be consistent with the sinking fund plan, which can be amended by ordinary resolution. Section 74: special purpose funds need a special resolution.
• Section 120A: owners' right to inspect records, including the CCTV Policy, access logs and contractor quotes.
• Schedule 3, ss 3.9 to 3.11: where a reduced quorum applies, decisions take effect after 28 days unless a majority petitions to disallow them. With 151 units, 76 is the quorum. This matters for any camera vote (see section 7).
On surveillance law, my understanding is that the Crimes (Surveillance Devices) Act 2010 (ACT) is mainly a law-enforcement warrants Act, that the Listening Devices Act 1992 (ACT)

governs recording of private conversations (hence sound recording being a problem), and that the Information Privacy Act 2014 (ACT) applies to public sector agencies rather than directly to an owners corporation. Whether the Commonwealth Privacy Act 1988 applies depends on turnover (the small business exemption) and on how Grady handles the data. The existing CCTV Policy nevertheless claims compliance with the Information Privacy Act, the Human Rights Act and the Territory Records Act, so I ask that the basis for that claim be confirmed by written advice.

1. Recommendations

1. Pause any extension of coverage until the review in recommendation 2 has been completed and reported to owners, and no further spending on new cameras be committed from the $24,000 authority or any other source in the meantime.
2. Complete and publish a post-implementation review of the existing seven cameras, answering the questions in my letters of 22 March and 7 May: purpose, total cost to date against $24,000, ongoing cost, incidents captured, outcomes, police use, access log, and retention practice.
3. State explicitly, in writing, every occasion on which footage has been accessed. For each occasion the Committee should record and provide: the date and time footage was accessed; the camera and the date and time period viewed; who accessed it and on whose authority; the reason; what the footage was used for (for example an incident review, a complaint, a request from police or an owner, or a maintenance check); whether any copy was made or given to anyone; and the outcome, including if no action resulted. If no register of access exists, the Committee should say so plainly. The 4 March 2026 pool footage should be the first entry.
4. Build and demonstrate the footage-to-action pathway before buying more cameras: who is told, who reviews footage, how quickly, what is done, and how footage is given to police. Test it on a real or simulated incident and record the result.
5. Review the CCTV Policy against the strata guidance above (purpose, access, logging, retention, signage, footage requests, review date), obtain written advice on its compliance claims, and put the revised policy to owners.
6. Reconsider the number plate camera on privacy and proportionality grounds, and state what it has been used for.
7. Target any future coverage at the problem the evidence supports: vehicle and carpark areas, with a defined crime or incident problem, rather than general coverage.
8. Treat cameras as one part of a security package that includes lighting, access control, tailgating controls and the secondary fence proposal, and compare their costs and benefits side by side.
9. Answer owners' correspondence on this subject in writing, with reasons or a timetable, and record it in the correspondence register.
10. Refer this letter to the Security sub-committee for advice to the Committee, and let that

advice inform the Committee's response to me. The sub-committee should address the recommendations above, the access statement in recommendation 3 and the facts listed in section 7, and its advice should be minuted and shared with owners.
11. Ask the Communications sub-committee to review how correspondence is handled. I urge that sub-committee to examine how the Committee receives, tracks and answers correspondence from owners, to ensure responses are timely, complete, in straightforward language, and actually answer the questions asked. It should report what it finds and any changes to the Committee, for example a register with target response times and a named person responsible for each reply.
6. Reporting back to owners
Owners have paid for this system and are entitled to know whether it works.

I recommend that:

- A plain-language report be circulated to all owners and residents (including renters, who live with the cameras every day) before the next general meeting, and included in the AGM package.
- The report states, in numbers: total cost against $24,000 and ongoing annual cost; number and type of incidents recorded since installation; times footage was reviewed, by whom and why; times footage was given to police and with what result; retention period in practice; and complaints or privacy concerns received.
- It states what the system cannot do (record only, no sound, no monitoring, field-of-view limits) so expectations are realistic.
- It is updated at least annually, and the access log is available to owners on request under s 120A.
- The report lists each occasion footage was accessed (date, who, purpose and outcome), without identifying residents.
- Any decision on cameras is minuted with the reasons, and the minutes are distributed promptly. Individual incidents are reported in a way that does not identify residents.
- The report is available in forms accessible to the community's different language groups and to those who do not use email.
- Facts that should be known before any vote to extend coverage

Before an extension is put to owners, the Committee should be able to answer each of the following in writing:

1. What specific problem is the extension meant to solve, and what is the evidence (dates, locations, types of incident, police reference numbers where applicable)?
2. What have the existing seven cameras achieved on that problem? Has any footage led to an identification, a police outcome, or the prevention of a loss?
3. What is the actual cost to date, and the whole-of-life cost over ten years of the proposed

extension (hardware, installation, power and network, storage, licences, maintenance, replacement, administration)?
4. Which fund would pay, under which budget or resolution, and is that consistent with the sinking fund plan and sections 75, 77 and 86 to 88?
5. Where exactly would each camera go, what would it see, and could it see into private lots, balconies or windows?
6. Would any camera be monitored, by whom, and at what cost? If not, what response is expected from recorded footage?
7. What alternatives were considered (lighting, locks, access control, fencing, resident reporting, Neighbourhood Watch), with comparative cost and expected effect?
8. What written legal and privacy advice has been obtained, and is the CCTV Policy current and compliant? Who may view footage, how is access logged, how long is footage kept, and how is it secured?
9. What do residents think? Have owners and renters been consulted, including the different cultural and language groups in the complex?
10. How will the vote be run so that it is representative? Of 151 units, a reduced quorum of 76 can decide a matter, so the Committee should state the turnout it regards as adequate, give clear notice with the supporting facts attached, and consider using the electronic voting already authorised by 2021 Motion 20. It should also explain the 28-day disallowance process.
11. How will success be measured, who will report on it and when, and what happens if the objectives are not met?
8. Response requested
I ask that the Committee reply in writing by 5 November 2026 to the following:

• whether it accepts recommendations 1 to 11, and if not, why;
• a complete statement of each occasion footage has been accessed since installation, showing when, by whom, what it was used for and what the outcome was (recommendation 3), or confirmation that no record exists;
• whether this letter has been referred to the Security sub-committee, and the advice that sub-committee gives, reflected in the Committee's reply to me;
• whether the Communications sub-committee will review the handling of correspondence, and when;
• when the post-implementation review and report to owners will be completed;
• whether any further camera expenditure has been committed or is proposed; and
• when I can expect answers to my letters of 22 March and 7 May 2026.
I make these requests as an owner who wants the system to work and the community to trust how it is run.

Yours sincerely,

**Steve Prothero**
**Owner, Unit 151, Greenway Terraces**

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